

25STCV36204 25STCV36204

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I. Background

A. Pleadings

(Based on the shared or similar surnames of the extended family group litigating this action, the Court refers to the parties by their first names. No disrespect is intended.)

This action involves a dispute to determine the percentages of undivided interest owned by members of an extended family in real property located in Los Angeles County.

In his December 11, 2025, Complaint, Plaintiff Mason Pari ("Mason") alleges various causes of action arising from allegations that he owns an undivided 75% interest in 428 South Barranca Street, West Covina, CA 91791 (the "Subject Property").

B. Motion

Before the Court

Defendant

Mojgan Khalpari ("Mojgan") brings a June 1, 2026, motion to compel a further response to Request for Admission ("RFA"), Set One, No. 1, served by Mojgan on Plaintiff Mason on January 14, 2026, to which Plaintiff Mason responded with objections alone. Defendant Mojgan also requests \$4,110.00 in monetary

sanctions against Plaintiff Mason and his counsel, jointly and severally.

Plaintiff

Mason has filed an opposition, and Defendant Mojgan has filed a reply.

Defendant

Mojgan's motion is now before the Court.

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II. Motion to Compel

Further Admission Response and Request for Sanctions

A. Timeliness

The Court

briefly notes that Defendant Mojgan's motion is timely insofar as Mojgan's motion was not subject to the 45-day requirement in Code of Civil Procedure 2033.290, subdivision (c), which is triggered only upon "the service of [a] verified response" to a request for admission. (Code Civ. Proc., § 2033.290, subd. (c).) (Cf. *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 135-136 [mixed responses to discovery with simultaneous objections and substantive response triggers 45-day deadline].)

B. Compel

Further Admission Response: GRANTED

1. Legal Standard

A motion

to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (See Code Civ. Proc., §§ 2030.300, subd. (a), 2031.310, subd. (a), 2033.290, subd. (a).) To obtain further responses to requests for

admission, the movant must establish that (1) the response to an RFA is evasive or incomplete (Code Civ. Proc., § 2033.290, subd. (a)(1)) or (2) the objection to an RFA is without merit or too general (Code Civ. Proc., § 2033.290, subd. (a)(2)).

2. Discussion

The Court

finds in favor of Defendant Mojgan.

The

request for admission at issue, which is on its face relevant to the real property issues raised in this action, reads:

Admit

that YOU (as used herein, the term “YOU” “YOUR”, or “YOURS” shall refer to Plaintiff Mason Pari) signed 1994 AGREEMENT (as used herein, the term “1994 AGREEMENT” shall refer to the three page written agreement entered on or about April 10, 1994 relating to the purchase of real property located at 428 S. Barranca Street in West Covina, California) a copy of which is attached as Exhibit “1A”.

(Motion,

Declaration of Lawrence J. Imel (“Imel Decl.”), ¶ 2.a., Ex. A.)

Plaintiff

Mason served an objection-only response to RFA, Set One, No. 1, on February 17, 2026, with the parties subsequently meeting and conferring regarding the adequacy of the response to no avail. (Motion, Imer Decl., ¶¶ 3-7.)

In

opposition to Defendant Mojgan’s motion, Plaintiff Mason argues that the admission request is objectionable because the request relies on an extrinsic document to complete the request for admission, rendering the request not full and complete in and of itself. Plaintiff Mason also argues that inclusion of an exhibit in RFA, Set One, No. 1 impermissibly seeks to establish something other than the mere genuineness of that exhibit. (Opposition, pp. 3-5.) While the latter point has merit, Defendant Mojgan prevails as qualified below.

The Court

agrees with Plaintiff Mason that reference to Exhibit 1A in RFA, Set One, No. 1, is improper. California courts have explained that “[a]n interrogatory is not ‘full and complete in and of itself’ when resort must necessarily be made to other materials in order to complete the question.” (Catanese v. Superior Court (1996) 46 Cal.App.4th 1159, 1164.) Extending this reasoning to requests for admission, and to the extent that RFA, Set One, No. 1, is relying on Exhibit 1A to “complete the question” regarding whether Plaintiff signed the “1994 AGREEMENT,” such reliance on Exhibit 1A would be improper because the request for admission would be referring to other materials beyond itself to complete the question, which would be improper per Catanese.

However,

Defendant Mojgan’s request for admission, by its express language, and without reference to Exhibit 1A, is full and complete in and of itself. RFA, Set One, No. 1 requests that Plaintiff Mason admit that he “signed [sic] 1994 AGREEMENT,” and fully fleshes out the meaning of the “1994 AGREEMENT,” i.e., a “the three page written agreement entered on or about April 10, 1994[,] relating to the purchase of real property located at 428 S. Barranca Street in West Covina, California.” (Motion, Imer Decl., Ex. A, p. 2.) Such language is eminently full and complete in and of itself, though, to Plaintiff Mason’s credit, the attachment of Exhibit 1A to RFA, Set One, No. 1, constituted confusing surplusage (if illustrative) beyond the text of the request for admission.

As a

result of the above, Plaintiff Mason was required by law to provide a complete and straightforward response to RFA, Set One, No. 1, with the information or knowledge reasonably available to him. (Code Civ. Proc., § 2033.220, subd. (a); see Code Civ. Proc., § 2033.220, subds. (b)(1)-(3).) Accordingly, Defendant Mojgan’s motion to compel a further response to RFA, Set One, No. 1, is GRANTED.

C. Request

for Sanctions: DENIED

1. Legal Standard

The Court

must impose monetary sanctions against anyone (party, non-party, or attorney) who unsuccessfully makes or opposes a motion to compel further responses to

requests for admission, unless it finds that the person to be sanctioned acted with substantial justification or other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2033.290, subd. (d).)

The court

may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

2. Discussion

Here, the

Court finds that imposition of sanctions would be unjust, and that the opposition was filed with substantial justification.

The Court

makes both findings on the ground that the parties raised genuine issues regarding the propriety of RFA, Set One, No. 1, including its written form and use of an exhibit, with Defendant Mojgan correctly taking the position that the request—at least its text alone—is full and complete in and of itself, and with Plaintiff Mason correctly arguing that reference to an Exhibit in RFA, Set One, No. 1, is procedurally improper.

Sanctions

are thus DENIED.

III. Conclusion

Defendant

Mojgan Khalpari's Motion to Compel Further Response to Request for Admission from Plaintiff Pari is GRANTED.

Plaintiff

Mason Pari is ordered to provide a response in conformity with this Order within 14 days of notice of this order.

Defendant

Mojgan Khalpari's Request for Sanctions in the Amount of \$4,110.00 is DENIED.

Defendant

Mojgan Khalpari is ordered to give notice of this Order.